

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

CORY J. BENNETT, Plaintiff,

Civil Action No. 1:26-cv-01601-RP-DH

v.

THE UNIVERSITY OF TEXAS AT
AUSTIN; EMILY HSIAO; JAMES G.
SCOTT; SALLY K. RAGSDALE; JAY
BARTROFF; KELLI BRADLEY; and
JEFF GRAVES, Defendants.

**PLAINTIFF’S SUPPLEMENTAL MOTION FOR PROMPT RESOLUTION OF
IFP STATUS AND § 1915 REVIEW**

Plaintiff Cory J. Bennett supplements Dkt. 11 as less time remains to obtain effective Fall 2026 relief. This motion also identifies the specific decisions needed to complete pre-service review: a disposition of Dkt. 3 under 28 U.S.C. § 1915(a)(1) and completion of § 1915(e)(2) review through an order, a report and recommendation, or both. For each defendant against whom at least one claim may proceed, Plaintiff also requests issuance of a summons and Marshal service of the then-operative complaint.

Plaintiff’s sworn affidavit establishes that prepayment of the filing fee and serving costs would prevent him from meeting ordinary living expenses. Dkt. 3 therefore satisfies the financial standard under 28 U.S.C. § 1915(a)(1). An IFP determination rests solely on economic criteria. *Gibbs v. Jackson*, 92 F.4th 566, 569 (5th Cir. 2024). For each defendant against whom the Court authorizes at least one claim to proceed, Rule 4(c)(3) requires court-ordered service, and Plaintiff may rely on the United States Marshal to complete it. *Id.*

Fall registration at UT Austin resumes August 19, and classes begin August 24, leaving limited time for service, briefing, and a ruling.

Pending IFP and Screening Decisions

Plaintiff submitted their complaint, IFP application, and proposed summonses on June 12, 2026. The Clerk entered the IFP application as Dkt. 3 on June 23. The Court has not ruled

on Dkt. 3, identified any defendant for service, authorized issuance of process, or stated the result of its § 1915(e)(2) review. Those unresolved pre-service matters continue to prevent Plaintiff from completing notice and refiling the preliminary-injunction motion as permitted by the Court’s July 7 order.

Plaintiff’s preliminary-injunction motion was entered as Dkt. 8 on July 1. On July 2, the Court denied the motion as Plaintiff had not shown that Defendants received notice of the motion or the lawsuit.

Plaintiff filed Dkt. 10 to obtain the summonses and service process needed to provide notice. The Clerk entered Dkt. 10 on July 6, and the Court referred it to United States Magistrate Judge Dustin Howell on July 7.

The Court also denied reconsideration on July 7. The order states: “Plaintiff may refile his Motion for Preliminary Injunction at a later date once notice is given to opposing parties. In that Motion, Plaintiff may request a briefing schedule for the Court’s consideration.”

Plaintiff filed Dkt. 11 on July 21 after Dkts. 3 and 10 remained unresolved. On July 22, the Court referred Dkt. 11 to Judge Howell “for disposition” under 28 U.S.C. § 636(b)(1)(A), Rule 72, and Rule 1(c) of Appendix C to the Western District’s Local Rules. No order has resolved Dkt. 3, Dkt. 10, or Dkt. 11. No summons has issued.

Pre-Service Review and Resulting Service

Section 1915(a)(1) governs financial eligibility to proceed without prepayment. Section 1915(e)(2) requires dismissal when the Court determines that a listed ground applies. Rule 72 directs a magistrate judge to conduct assigned nondispositive and dispositive proceedings promptly. Plaintiff requests prompt completion since the remaining Fall 2026 enrollment and course-add periods are now measured in days, and delays in service and briefing could prevent effective relief.

The pending pre-service process can be completed through a ruling on Dkt. 3, the disposition resulting from § 1915(e)(2) review, and, for each defendant against whom at least

one claim may proceed, a service order. The service order may direct the Clerk to issue the corresponding summons and direct the Marshal to serve the then-operative complaint.

The referral procedures also address any proposed claim dismissal. A magistrate judge may enter orders on nondispositive matters under § 636(b)(1)(A). A claim-dispositive screening result may be presented to the district judge through proposed findings and recommendations under § 636(b)(1)(B) and Rule 72(b). The screening disposition may authorize service on some defendants, recommend dismissal of other claims or defendants, or do both.

Remaining Time for Fall 2026 Relief

Plaintiff's preliminary-injunction request concerns Fall 2026 accommodations, enrollment, course planning, and prerequisite decisions. The proposed relief includes administrative enrollment and deadline adjustments when ordinary registration dates have passed. Dkt. 8 at 1–2.

UT's current Fall 2026 schedule resumes registration on August 19 and begins classes on August 24. Ordinary class-add periods close August 27 for graduate and law students and August 31 for undergraduate students. Late-registration and permission-based add procedures remain available through September 9. University of Texas at Austin, Office of the Registrar, *2026–2027 Academic Calendar; When to Register and Pay, Fall 2026* (last visited Aug. 6, 2026). Those later procedures leave a limited opportunity for administrative relief, but they do not eliminate the time required for summons issuance, service, renewed Rule 65 briefing, judicial consideration, and University implementation.

After IFP review and screening, several steps remain before Plaintiff can obtain effective Fall 2026 relief. For each defendant authorized for service, the Clerk must issue the corresponding summons, and the Marshal must serve the summons and then-operative complaint. Plaintiff must then refile the preliminary-injunction motion as permitted by the July 7 order. Defendants must receive an opportunity to respond. The Court must then

decide the motion, and any Defendant against whom relief is granted must comply with the Court's order.

Prompt completion of pre-service review can preserve the remaining possibility of effective Fall 2026 relief, including late or administrative enrollment, course registration, and implementation of prospective accommodations. If the Court requires additional financial information, corrected summonses or other process, clarification of the pleading, an amended complaint, or a hearing before completing review, Plaintiff requests that the Court identify or schedule the required step promptly and set any necessary response deadline.

Requested Relief

Plaintiff respectfully requests that the Court:

- A. grant Plaintiff's Application to Proceed in Forma Pauperis, Dkt. 3, under the economic standard in 28 U.S.C. § 1915(a)(1);
- B. complete the pending review under 28 U.S.C. § 1915(e)(2) through any appropriate order and, if Judge Howell proposes dismissal of any claim or defendant, a report and recommendation under 28 U.S.C. § 636(b)(1)(B) and Rule 72(b);
- C. for each defendant against whom at least one claim may proceed, direct the Clerk to issue a summons and order the United States Marshal to serve the summons and the then-operative complaint under 28 U.S.C. § 1915(d) and Rule 4(c)(3);
- D. permit issuance and service on any defendant for whom the screening disposition authorizes service, without delaying that service solely because the same disposition recommends dismissal of other claims or defendants;
- E. resolve Dkts. 10 and 11 consistently with the IFP and screening dispositions;
- F. within five business days after this motion is entered on the docket, if practicable, rule on Dkt. 3 and complete § 1915(e)(2) review by order, report and recommendation, or both. If that is not practicable, identify within that period any additional submission required from Plaintiff and set a prompt date certain for completing pre-service review;

- G. extend the Rule 4(m) period through 90 days after the Clerk issues the summonses authorized by the Court, or for another period sufficient for Marshal service; and
- H. grant further relief necessary to complete service and preserve the remaining possibility of effective Fall 2026 relief.

No Defendant has appeared, no summons has issued, and no opposing counsel is of record. Plaintiff therefore could not confer regarding this motion and does not characterize it as unopposed.

Respectfully submitted,

Dated: August 6, 2026

A handwritten signature in black ink that reads "Cory Bennett". The signature is written in a cursive, flowing style.

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